

Court No. - 37

Case :- WRIT - C No. - 46751 of 2013

Petitioner :- M/S Baba Cold Storage

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Ashok Bhushan, J.

Hon'ble Vipin Sinha, J.

Heard counsel for the petitioner, learned Standing Counsel for the State-Respondent no. 2 and Sri Baleshwar Chaturvedi, learned counsel appearing for respondent nos. 1 and 3.

Connect with Writ Petition No.30582 of 2009, M/s Vehina Steels & Alloys Pvt. Ltd. & Anr. Vs. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. and other similar matters by which the demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 has been challenged.

Learned Standing counsel submits that several writ petitions are pending on the same issue, and are going to be listed for hearing.

Learned counsel for the respondents are allowed three weeks' time to file counter affidavit.

In view of the interim order, as already granted in Writ Petition No.30582 of 2009, it is provided that, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 4.9.2013

Anand

Chief Justice's Court

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Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)